

The complaint

Mrs M complains Royal & Sun Alliance Insurance Limited ('RSA') unfairly declined storm damage claims under her home insurance policy.

What happened

Mrs M had a home insurance policy with RSA which provided buildings and contents cover. It didn't include accidental damage cover.

In December 2020, Mrs M claimed on her policy because water was coming into an upstairs room, possibly because of storm damage to her roof. RSA's surveyor visited and reported the roof had been deteriorating over some years and the roof damage was due to natural breakdown of materials (or, wear and tear). So the external roof damage and the internal water damage from recent rains wasn't the result of a single identifiable storm event. RSA declined the claim.

In February 2021 Mrs M claimed again for broadly similar but more extensive damage, as she said there'd been a storm. RSA's surveyor visited and reported the damage was wear and tear and not consistent with a storm event. And said that while recent rains had entered Mrs M's property through her roof, there was no external storm damage, so Mrs M wasn't covered for the internal water damage. RSA again declined the claim.

Mrs M complained to RSA. She thought it was using wear and tear as an excuse and that its two surveyors contradicted each other about the roof's general condition and flashing. Mrs M said the first surveyor reported missing roof flashing, but she maintained her property, with roof work done in March 2020, and her roof did have flashing. Mrs M suggested that if the flashing had been stolen, this would be covered by her policy. She said the policy covered water damage to the 'building structure' and that the damage was covered under the policy, as it was 'swift, sudden and didn't accumulate over a number of years.' And that RSA's surveyor had been unprofessional by sending her three claim outcome letters but with amended paragraphs.

RSA didn't change its position. It thought the weather at the time of the claims couldn't be considered a storm. It explained that both surveyors said the roof damage was due to wear and tear, and that a roof can be in reasonably good condition but still require maintenance.

Unhappy, Mrs M brought her complaint to us. She wanted RSA to accept it wasn't wear and tear and pay under one of the policy's insured perils of storm, escape of water or theft. Mrs M provided evidence of roof work she'd had done in 2020 and June 2021.

Our investigator said RSA was fair to conclude that weather around the time of each claim wasn't a storm and decline the claims on that basis. And even if she thought the damage in Mrs M's second claim was caused by a storm - which she didn't - Mrs M hadn't repaired the December 2020 damage. Our investigator thought the surveyors weren't contradictory, and RSA was fair to rely on them and apply the policy's 'wear and tear' exclusion. She noted Mrs M didn't have accidental damage cover for the internal damage to be considered under.

Mrs M disagreed, saying RSA hadn't considered hairline cracks in a first floor room. And she'd not been able to arrange repairs for the December 2020 damage because of poor weather and then the coronavirus lockdown. Mrs M provided media articles about the storms (Storm Bella and Storm Darcy) she thought had damaged her roof, and said RSA should pay her claim based on the everyday meaning of storm. She said the average person wouldn't measure things like water flow, and she'd seen blown tiles and other damage to her roof. And she thought RSA falsely advertised it covered storms.

Our investigator didn't change their view. As agreement couldn't be reached, this complaint was passed to me for a decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

The crux of Mrs M's complaint is that RSA has unfairly declined her claims. So I need to consider whether RSA acted fairly here.

Mrs M says the damage she's claimed for was caused by Storm Bella in December 2020 and Storm Darcy in February 2021, and that RSA falsely advertised it covers storms. Mrs M's policy terms and conditions say it only covers against loss or damage caused by the specific perils listed in the policy. One of these is 'storm, flood'. The terms also say the policy excludes cover for *'wear and tear, maintenance or anything that happens gradually.'*

The policy terms and conditions don't define 'storm'. But RSA's response to Mrs M's complaint says it considers storm *'...as per the Beaufort Wind Scale however, we understand that slight structural damage can occur during winds of 47mph or more. Rain alone, will not damage the externals of your property however, we accept that rain of a certain intensity (16mm of rainfall an hour) can start to get inside.'*

RSA says the weather in Mrs M's area around those times don't amount to a storm. I can see there were 'named' storms in December 2020 and February 2021 which Mrs M has provided media articles about. But I've checked the weather records local to Mrs M's home in the weeks before each claim. They show it was windy, with slightly higher winds around the time of the second claim. But the winds weren't high enough to reasonably be considered storm force. And the rainfalls weren't severe enough to be considered as a storm in their own right. So I'm satisfied RSA was fair to say there weren't storm conditions in either December 2020 or February 2021.

I understand Mrs M thinks RSA is unfair to say the roof damage isn't consistent with storm damage and was instead caused by wear and tear. She said her roof is well maintained and provided evidence of work done to her roof in 2020 including repairing broken slates, repointing, sealing flashing and tiles, and cleaning the gutters. But both RSA surveyors thought the damage claimed for was due to wear and tear and not storm.

The first surveyor reported *'there is poor detailing to the lead work to the front skirt and the flashing to the side of the chimney breast is missing. There are also broken and slipped slates due to like [sic] nail fatigue and this is an ongoing progress [sic] due to age of roof suffering from natural material breakdown. Although the recent weather conditions have highlighted the problem; the roof has been deteriorating over some years and this is unfortunately not something that is covered under your insurance policy.'*

The second surveyor reported the main roof was *'in reasonably good condition'*. But said there were slate pieces in the guttering and valley, with evidence of previous repairs to the

chimney stack. They said the damage was caused by natural breakdown of materials and wasn't consistent with a storm event.

Slipped and missing tiles and internal rainwater damage is the type of damage that could be caused by a storm. But RSA's first surveyor explained Mrs M's tiles had slipped and broken because of nail fatigue, and that the roof has been deteriorating over some years. They provided reasoning and photographs to support that. RSA's second surveyor also thought the damage was caused by wear and tear. So two different surveyors each inspected and concluded the roof damage was due to wear and tear and not storm.

I know Mrs M thinks the two surveyors contradicted each other about the condition of her roof, and she's interpreted one surveyor as saying all the roof flashing was missing. The first surveyor notes areas of deterioration, including missing flashing to the chimney breast. So they aren't saying all the flashing is missing, just a specific area of it. And while the second surveyor does say the main roof was in reasonably good condition, they highlighted areas of concern and said the damage was caused by the natural breakdown of materials. So I can't agree the surveyor reports are contradictory, and I note they both arrived at the same conclusion. And I think it was fair and reasonable of RSA to rely on the surveyor opinions and conclude the damage was caused by wear and tear and not storm.

Even if I thought there were storm conditions at the time of each claim, which I've said I don't, I'm satisfied the weather wasn't the main cause of the roof and internal water damage but instead only highlighted an existing problem of deterioration.

I've taken into consideration what Mrs M said about the maintenance she's had carried out on the roof and the evidence she's provided in relation to this. But the evidence of the 2020 roof work Mrs M has provided doesn't show an extensive refurbishment of the whole roof. So although I appreciate Mrs M has had some work done on the roof, it's still the case that the first surveyor concluded the roof had been deteriorating for some years, with an area of missing flashing and fatigue of the nails which attach the slates.

I acknowledge the reasons why Mrs M didn't get the December 2020 damage repaired before she claimed again in February 2021. But I can't fairly say RSA were in any way responsible for the difficulties in getting the work done that Mrs M experienced. Whatever difficulties she encountered, it remained Mrs M's responsibility to have work carried out. And in this way, it was up to Mrs M to mitigate her losses and ensure steps were taken to repair the December 2020 damage, so that the problems with the roof didn't get any worse and cause additional losses.

Mrs M has suggested her claims may be payable under the policy for perils other than storm, particularly escape of water and theft. I'm satisfied Mrs M's policy didn't include accidental damage cover, so she can't claim for the damage under that. But if Mrs M thinks there is evidence of theft or escape of water at her home, she should contact RSA about that in the first instance. If she's unhappy with its response then she can raise a new complaint with RSA about that. And if she's unhappy with its final response to her complaint, Mrs M may refer that new complaint to our service for an impartial investigation.

While not the crux of her complaint, Mrs M also thought RSA's surveyor was unprofessional to send her three similar claim outcome letters but with amended paragraphs. Even if I were to accept that RSA had made an error by doing that, I've not seen that it caused Mrs M any detriment and it doesn't change the outcome here.

Taking everything into account, I'm satisfied it was fair and reasonable for RSA to decline Mrs M's claims under the peril of storm.

My final decision

For the reasons set out above, I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs M to accept or reject my decision before 23 December 2021.

Ailsa Wiltshire
Ombudsman